

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:
Index No.

-----X
JOSEPH CHEATHEM

Plaintiff designates Bronx County
As place of trial based on
Plaintiff's residence

Plaintiffs,

-against-

SUMMONS

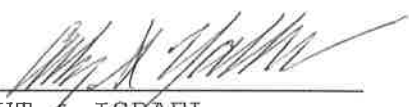
THE CITY OF NEW YORK AND P.O. CHARLES
BUGLIONE Shield No. 354

Defendant
-----X

TO THE ABOVE NAMED DEFENDANT:

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 11, 2017


YALKUT & ISRAEL
Attorneys for Plaintiffs
2139 Williamsbridge Road
Bronx, New York 10461
718-292-2952

Defendants' Name and Address:

City of New York - 100 Church Street, N.Y., N.Y. 10007

P.O. Buglione - 1 Police Plaza, N.Y., N.Y.

Notice: The nature of this action is false arrest, false imprisonment, civil rights violations, negligence.

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSEPH CHEATHAM,

Plaintiff,

INDEX NO.

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. CHARLES
BUGLIONE, Shield No. 354

Defendant(s)

Plaintiff, as and for his/her Verified Complaint, by his/her attorney(s), Yalkut & Israel,
allege the following upon information and belief;

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York.
2. A notice of claim was served upon defendant, CITY within ninety(90) days of the
occurrence and/or accrual of the cause of action.
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
CITY, has failed to adjust and /or dispose of the claim presented therein.
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action.
5. That at all times hereinafter mentioned, defendant, CITY, owns THE NEW YORK CITY
POLICE DEPARTMENT, hereafter referred to as POLICE, as a subsidiary;
6. That at all times hereinafter mentioned, defendant, CITY, maintains the POLICE
7. That at all times hereinafter mentioned, defendant, CITY, operates and controls the
POLICE
8. That at all times hereinafter mentioned the defendant P.O. Charles Buglione, hereafter

referred to as CHARLES was employed by the POLICE, of the defendant CITY;

9. That at all times hereinafter mentioned, defendant, CHARLES acted within the scope of his authority and with full knowledge and consent of the defendant CITY and the POLICE.

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

10. On May 21, 2016 plaintiff, was lawfully at or near 1700 Longfellow Avenue, County of Bronx, City and State of New York, when members of the POLICE of defendant, CITY, responded to said location.
11. Plaintiff was lawfully at said location.
12. Plaintiff, was talking to a friend when the police accused the plaintiff of menacing two females who were across the street by displaying a weapon (none ever found) and the plaintiff falsely imprisoned at both the scene of the occurrence for approximately one half hour and continuing thereafter at the 42nd Precinct for approximately 4 ½ hours and thereafter at Central Booking where he remained until his release on May 22, 2016 at approximately 5 pm.
13. As a result of the aforementioned, plaintiff, suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
14. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
15. The criminal action against the Plaintiff was disposed of as follows: Dismissed September 20, 2016.
16. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all

inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. Plaintiff, was, without cause or provocation, falsely arrested.
19. As a result of the foregoing, plaintiff, suffered emotional trauma, fear for his life, sustained severe and serious personal injuries and other consequential damages.
20. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. Defendants maliciously prosecuted criminal charges against plaintiff, as, a proper investigation would reveal the charges to be false and an founded on September 20, 2016 the charges were dismissed.
24. As a result of the foregoing, plaintiff, suffered emotional trauma, fear for his life, sustained severe and serious personal injuries and other consequential damages.
25. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, plaintiff, has been damaged in a sum within the

Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
28. At the aforementioned time and place, plaintiff was negligently treated by various police officers employed by the defendant, CITY .
29. Said police officers were acting within the course and scope of their employment with defendants.
30. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-BATTERY

32. Plaintiff repeats, reiterates and realleges the allegations contained in Paragraphs "1" through "30" herein as if more fully set forth at length.
33. At the aforementioned time and place, plaintiff, was battered by defendants without any provocation on the part of the plaintiff,
34. As a result of the aforementioned, plaintiff, sustained serious and severe permanent personal injuries.
35. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.

36. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-INVASION OF PRIVACY:

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. The aforementioned occurrence constituted an invasion of the privacy of plaintiff, *.
39. As a result of the foregoing, Plaintiff, sustained severe and serious personal injuries and other consequential damages.
40. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
41. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "40" herein as if more fully set forth at length:
43. As a result of the aforementioned occurrence, plaintiff, was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343.
44. As a result of the foregoing, plaintiff, *, suffered emotional trauma, feared for his life, lost his employment, sustained severe and serious personal injuries and other

consequential damages.

45. Plaintiff intend to claim punitive damages for all of the causes of action interposed herein.
46. Defendants arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well being, safety and constitutional rights.
47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs , policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said department.
49. . The aforementioned customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - a) fabricating evidence against innocent persons erroneously arrested
 - b) arresting innocent persons wrongfully apprehended
 - c) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing

50. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct. as documented in the following civil rights actions filed against the City of New York:

- Frank Douglas v. City of New York., United States District Court Southern District of New York, 03 CV 6475;

Darnell Flood v. City of New York., United States District Court Southern District of New York. 03 CV 10313;

Theodore Richardson v. City of New York. et al., United States District Court, Eastern District of New York, 02 CV 3651;

Phillip Stewart v. City of New York., United States District Court, Southern District of New York, 05 CV 2375;

Benjamin Taylor v. City of New York., United States District Court. Eastern District of New York, 01 CV 5750;

Angel Vasquez v. City of New York., United States District Court, Eastern District of New York, 05 CV 3552;

- Alvin ,Williams v. City of New York., United States District Court, Southern District of New York.. 05 CV 4013:

Terrence Burton v. City of New York., United States District Court, District of New York, 06 CV 6884.

51.. The foregoing customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety', well-being and constitutional rights of plaintiff

52. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations as alleged herein

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.
54. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated unlawfully for one day.
55. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of plaintiff,
56. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
57. All of the foregoing acts by the defendants deprived the plaintiff of federally protected rights, including but not limited to:
- A. Not to be deprived of liberty without due process of law.
 - B. To be free from seizure and arrest not based upon probable cause.
 - C. To be free from unwarranted and malicious criminal prosecution.
 - D. Not to have cruel and unusual punishment imposed upon him/her; and
 - E. To receive equal protection under the law.
58. The plaintiff intends to seek punitive damages on all counts.

EIGHTH CAUSE OF ACTION-NEGLIGENCE

59. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "46" herein as if more fully set forth at length:
60. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers.
61. As a result of the foregoing, Plaintiff, suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
62. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
63. As a result of the foregoing, plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the plaintiff seeks damages in all causes of action, in a sum within the jurisdictional limits of The Supreme Court of the State of New York and in excess of the jurisdictional limits of all inferior Courts.

Dated :Bronx, New York

December 6, 2017

Yalkut & Israel Esqs.
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952



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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX NO

JOSEPH CHEATHAM

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CHARLES BUGLIONE Shield No. 354

Defendants

SUMMONS AND VERIFIED COMPLAINT

YALKUT & ISRAEL
Attorneys for Plaintiff
2139 Williamsbridge Road
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(718) 993-1542 (Fax)

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12-8-17

Signature:

Print Signature Name: ARLOUS YALKUT

TO:

Attorney(s) for

Service of a copy of the within
admitted.

is hereby

Dated:

Attorney(s) for

PLEASE TAKE NOTE

that the within is a (certified copy of a

entered in the Office of the Clerk of the within named court on

20

that an order of which the within is a true copy will be presented for settlement
to the Hon. , one of the judges of the within named court,

on , 20 , at M.

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